

24SMCV03303 24SMCV03303

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TENTATIVE RULING

August 27, 2026

24SMCV03303 (Maybrook Homes LLC,
et. al. v. Ilan Kenig, et. al.)

RELEVANT BACKGROUND

On July 9, 2024,
plaintiffs Ezequiel Serebrisky (Serebrisky) and Maybrook Homes, LLC (collectively,
Plaintiffs) filed their complaint against defendants Ilan Kenig (Kenig), FMB
Consulting, LLC, and FMB Development, LLC (collectively, Defendants).

INSTANT MOTION

On April 29, 2026, Serebrisky filed the instant motion to compel the deposition of
Kenig and requests monetary sanctions in the amount of \$2,790.00. Kenig filed
an opposition, and Serebrisky
filed a reply.

MEET AND CONFER

The Court finds that Serebrisky has
satisfied the meet and confer requirement. (Krishel Decl. ¶ 3.)

DISCUSSION

Pursuant to Code of Civil

Procedure section 2025.450, a party may move to compel a deposition of a party, or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party when the deponent fails to appear or produce requested documents without valid objection. (Code Civ. Proc., § 2025.450, subd. (a).).

“The

motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Id., subd. (b)(2).) Section 2016.040 states that “a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., 2016.040.)

“Any

party, other than the deponent, or attorney of record may appear and participate in an oral deposition by telephone, videoconference, or other remote electronic means, provided: [¶] (1) Written notice of such appearance is served by personal delivery, e-mail, or fax at least five court days before the deposition; [¶] (2) The party so appearing makes all arrangements and pays all expenses incurred for the appearance.” (Cal. Rules of Court, rule 3.1010, subd. (b).) “A deponent must appear as required by statute or as agreed to by the parties and deponent” (Id., subd. (c).)

“Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2025.420, subd. (a).)

Here, Serebrisky

issued the notice on April 3, 2026, for a deposition date of April 30, 2026, at 10:00 a.m., in person, in Woodland Hills. (Krishel Delc., Ex. A.) On April 4, 2024, Kenig served an objection to the documents sought in the deposition but did not object to appearing for deposition. (Id., Ex. B.) Serebrisky states that Kenig refused to appear in-person and would not provide any dates to appear in-person. (Id., Ex.

C-D.) In support of the proposition that a deponent must appear in-person absent agreement, Serebrisky cites California Rules of Court, rule 3.1010, subdivision (c) ["A deponent must appear as required by statute or as agreed to by the parties and deponent"].

In opposition, Kenig argues that, when the instant motion was filed, the noticed date had not arrived, and Kenig confirmed the day after the notice was issued on April 4, 2026, that he was willing to appear remotely because he was in Israel due to a family emergency. Kenig also highlights that he remains willing to be deposed.

In reply, Serebrisky argues that Kenig did not disclose that he was in Israel or that there was a family emergency prior to the opposition. But Kenig did indicate that he would appear remotely because he was outside of the United States. (Krishel Decl., Ex. C.)

Serebrisky's motion to compel the deposition of Kenig is GRANTED. Kenig was served with a valid notice of deposition pursuant to Code of Civil Procedure section 2025.210, et seq. (Krishel Decl., Ex. A.) Kenig did not seek a protective order pursuant to Code of Civil Procedure section 2025.420, as conceded by Kenig. (Opp. at 8:28.) Kenig's opposition essentially seeks a limited protective order requiring that Kenig's deposition be taken by Zoom; Kenig has not, however, complied with section 2025.420, which requires that he file a noticed motion.

Serebrisky's request for monetary sanctions is DENIED. The Court finds that monetary sanctions are not appropriate because Kenig's position was substantially justified given that he was in Israel due to a family emergency at the time and offered to appear remotely.

Moving party to give notice.